



POLICE DEPARTMENT

September 30, 2009

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Ronald Williams
Tax Registry No. 900723
113 Precinct
Disciplinary Case No. 84379/08

The above-named member of the Department appeared before me on April 30, 2009, and September 02, 2009, charged with the following:

1. Said Police Officer Ronald Williams, assigned to School Safety Division, while on-duty, on or about October 5, 2007, inside Newtown High School, in Queens County, did fail and neglect to render police services in his assigned area, to wit: said Officer delayed responding to a radio run. (*As amended*)

P.G. 202-21, Page 1, Paragraph 8 – POLICE OFFICER DUTIES AND RESPONSIBILITIES

2. Said Police Officer Ronald Williams, assigned to School Safety Division, while on-duty, on or about October 5, 2007, inside Newtown High School, in Queens County, was discourteous to on-duty New York City Police Sergeant Sean Williams, Tax No.: 910704¹, to wit: when Sergeant Williams questioned said Officer regarding the reasons why he was delayed in responding to a radio run, said Officer threw his arms up in the air and walked away. (*As amended*)

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT – GENERAL REGULATIONS

The Department was represented by Pamela Naples, Esq., Department Advocate's Office, and the Respondent was represented by Craig Hayes, Esq.

¹ The Tax Number for Sergeant Sean Williams was incorrectly inserted on the original Specification as 345916.

The Respondent entered a plea of Guilty to Specification No. 1 and a plea of Not Guilty to Specification No. 2. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent having pled Guilty is found Guilty of Specification No. 1. The Respondent is found Guilty of Specification No. 2.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Sergeant Sean Williams as its sole witness.

Sergeant Sean Williams

Williams has been employed by the Department for almost 20 years. Currently, he is assigned to the School Safety Uniform Task Force where he has been for about three years. He is assigned to Newtown High School. On October 5, 2007, he arrived at the school at about 9:00 A.M. or 9:30 A.M. After checking things inside the school, he did a perimeter check using a vehicle. Later, he was out in front of the school with Officer Phillips who was assigned to the school when School Safety Agent Bradshaw came outside "kind of frantic, telling me that they needed help in the AP's office with an irate student and they couldn't get Officer Williams (the Respondent) to come and help them out."

After speaking with Bradshaw, he and Phillips went upstairs to the AP's office to address the situation. This occurred at about 12:00 P.M. or 12:30 P.M. and it took about six to ten minutes to deal with the situation. Present to help address the situation were Officer Moses, Philips and a "handful of School Safety agents."

He did not see the Respondent while he was handling the situation. Afterwards he spoke with Bradshaw who told him that another officer, Guileon, (spelled phonetically) had told the Respondent that she needed help and that the Respondent had said that "he was eating or something to that effect" and that she had gone to Bradshaw who got him (Williams).

Williams noted that the AP's office is about two or three doors down from the teachers' lounge which is where the Respondent was taking his meal. Williams then walked down the hall with the Respondent so he could speak to him in private. Williams asked the Respondent if two different school safety agents had approached him and asked for help in the AP's office and the Respondent acknowledged that this was true. Williams asked the Respondent why he didn't go and "he (the Respondent) looked at me kind of disgusted like you know look man I was eating I am not putting my food aside to run to this stuff, and walked away." Williams described the Respondent's demeanor as "Like he really didn't care what I had to say." Williams indicated that he considered this discourteous.

Williams testified that after the Respondent walked away, he went to the precinct to prepare a command discipline (CD). He spoke with the Integrity Control Officer (ICO) and the Commanding Officer.

Williams indicated that “meal is not a privilege and if the radio comes or some sort of police emergency you have to respond right away.” He indicated that an officer is supposed to stop what he is doing and answer the job. He indicated that he has received radio runs while on meal and that he has responded to the job and that this is “drilled into your head” at the academy.

Williams also made entries in his activity log which was entered into evidence as Department’s Exhibit [DX] 1.

On cross-examination, Williams indicated that he worked in the Tactical Patrol Force and other units before his current assignment. He has never issued a Command Discipline as a sergeant. Williams indicated that the number of school safety agents in the school vary depending on manpower. On the day in question there were two officers assigned to Newtown High School plus a sergeant and his driver for a total of three officers. Williams also indicated that there are different responsibilities for School Safety agents as opposed to police officers. When asked if there is a protocol as to when a School Safety agent is to call a police officer, Williams answered that: “That’s never really been outlined, if they feel it’s necessary they are going to call [for a police officer].” Williams agreed that there is discretion as to whether or not to call a police officer.

Williams said that the police function was not primarily there to patrol but that they are there to help mediate problems and to interact with the children. He indicated that when there is a verbal disagreement between a teacher and a student, they would call whoever is available, be it a School Safety agent or a police officer.

Williams indicated that sometimes, the School Safety agents use the same codes as police and he believes they are trained in police radio codes. He explained that there is a specific radio band for each school and that while he is on patrol outside of the school, he uses the 110 Precinct frequency. He also indicated that some of the teachers have radios.

Williams indicated that there is no difference between an 85 and a call for help noting that "an 85 is a call for assistance."

Williams agreed that if he was outside the building and not on the school frequency, the school safety agents would not be able to reach him.

Describing the incident with the student, Williams indicated that when he arrived the student was "screaming and flailing his arms, cursing at the AP." He said there were a "handful" of agents there and that no one was putting a hand on the student but they were trying to talk to him. Williams did not remember what the student was yelling about. The situation ended when Williams spoke to the student. He did not remember what he said but that after a while he calmed down. To Williams' knowledge the student did not strike anyone nor was there any damage to the office. Williams did not remember if the student was suspended but said the student was not given a summons for any type of criminal behavior nor was he arrested. He also agreed that the student was never handcuffed during the incident.

Williams indicated that the Respondent had worked with him for a week or a week and a half at the time of the incident but he was not sure, stating that he did recall working with him a couple of days.

Williams indicated that he asked the Respondent if two agents came to him at two different times and asked him to help with this irate student. Williams said that the Respondent indicated that that is what happened. Williams stated that he then asked the Respondent why he did not go and the Respondent told him that he was eating and that he was not going to put his food to the side to go run to this stuff. When asked if the Respondent said anything else Williams stated "No, he walked away." Williams added, "After he said what he said pretty much rolled his eyes and walked away from me after he walked away I stood there and then I walked away."

Williams decided at that time that the Respondent deserved a CD. He spoke to Lieutenant Neely, the ICO, who told him that the Respondent should get a Department discipline (charges & specifications). Williams also spoke to the commanding officer.

Williams indicated that he believed the Respondent should get a CD. At the end of the day, Williams told the Respondent he was going to get a CD. When asked if at that point the Respondent threw his hands up in the air Williams stated, "Not at all." The Court then asked Williams if there was any point at which the Respondent threw his hands up. Williams indicated that it had occurred "back at the school" when the Respondent had told him "look man I was eating, I am not putting my food to the side for anybody."

Williams was then asked to show what he did. Williams stood up. He indicated that the Respondent looked down rather than looking at him during the conversation. That as he spoke he turned and raised his both hands above his shoulders.

On re-direct examination, Williams indicated that he took no part in the final decision over whether a CD should be issued or formal disciplinary action pursued. That decision came from the commanding officer.

Williams was then asked by the Court to read his notations in the memo book (DX 1). "School Safety agent approached PL Williams asked for help with disorderly student. The officer told the agent he was eating his lunch and did not respond. Later agent Bradshaw approached the officer with the same request and was met with the same response and when asked by his immediate supervisor his response was "look, I was eating I am not going to put my food to the side and run to this stuff."

On re-cross examination, Williams agreed that under some circumstances there might be no officers inside the school. He indicated that at Newtown High School at dismissal times all of the officers might have been outside the school building. He agreed that it could happen that there were times when no officers would have been inside the school.

The Respondent's Case

The Respondent testified in his own behalf.

The Respondent

The Respondent has worked for the Department for seventeen and one half years. Prior to that, he worked for the Sanitation Department. He also served in the U.S. Air Force for four and a half years after which he received an honorable discharge. After

graduating from the Academy he was assigned to the 105 Precinct and then School Safety Division. He is now in the 113 Precinct.

In October 2007, he had been in School Safety for three years. Explaining the difference between the work of police officers and School Safety agents the Respondent indicated that if necessary, agents will remove a student from class. They would also challenge anyone that enters the school. If there is a fight, they break it up and take the kid to the dean's office.

He indicated that if a kid needs to be arrested, a police officer would do that. He also indicated that police officers issue C summonses, because School Safety agents can't do that. He noted that agents have handcuffs and can make arrests.

The Respondent agreed that there were times when an agent would ask for the assistance of a police officer.

The Respondent testified that his assigned meal break on October 5, 2007 was 11:30 A.M. to 12:30 P.M. He went into the lounge, Officer Phillips was already there and he covers the Respondent while he is on meal. A call came over the radio about a disorderly student and he answered the radio. Some seconds later, a school safety agent came to the doorway and "I don't know what she said and I know I thought she was saying did you hear the radio run come over I was like yeah so at that point I started to get my stuff together to go to the radio run which a second agent came into the room where I was sitting and told me about the situation and packed up my lunch and I went down the hallway to see what was going on."

The Respondent acknowledged that he did not immediately stop what he was doing when he received the radio call and he acknowledged that it was his responsibility

to do so. He indicated that the delay was 30 seconds. He indicated that he did not go immediately because it was not a priority job, just a disorderly student. And "like I said, I was eating and just packed my stuff up to go to the job." He did not feel it was an emergency situation and noted that it was not called in as an "85."

He indicated that he had been in that school "for about a week Friday was a week I was there for five days" so he was not familiar with where all the rooms were. He walked down the hall and saw Phillips and Sergeant Williams and his driver, Police Officer Moses. They met in the hallway at the point where the student was outside the dean's or assistant principal's office. Phillips and then Sergeant Williams spoke to the student. After that Williams spoke to the Respondent. Williams asked him how much time he had on the job and noted that he was good with his mouth and suggested that he speak to the student.

The Respondent indicated that the student was upset because he thought the dean was picking on him. That he wanted to sit down while the dean was speaking to him and that he brought the student back into the office and had him sit down then afterwards he brought the student to another room where he got his suspension. The student did not give him any trouble.

After that Williams called him over to speak to him down the hall and asked if his radio was on. He denied throwing his hands up at the sergeant stating: "No, sir I wouldn't do that from my military training if a sergeant gives me orders any superior gives you orders you just do what you have to do it. I am not going to fight with a sergeant that is not in my character."

The Respondent also denied walking away from the sergeant when he was speaking to him saying; "Matter of fact he walked away from me he left me standing there."

He did not remember the content of his conversation with the sergeant. At the end of the day while he was signing out, the sergeant told him that he was going to get a CD. He did not know what he was getting the CD for, he just wanted to go home and return on Monday and find out what was going on.

On cross examination, the Respondent indicated that he recalled going to the police academy. He indicated that he knew he was supposed to respond when he got a radio run even if you are on meal. He agreed that on October 5, 2007, he received a radio run and responded "10-4" which means he will respond. He agreed he did not get up right away and that he started to put his lunch away. He agreed that two School Safety agents came to talk to him but noted that one came in right after the radio transmission, after the first the second came moments later. He acknowledged that he was packing up his lunch. He agreed that the disorderly student was two or three doors away from where he was.

He noted that he had been there a short time and had been up and down the school and did "perimeters."

He indicated that it did not come over as an emergency and that it came over as a disorderly student. He said that based on his experience, he determined that it was not a priority job.

On redirect, he indicated that he has been in School Safety for five years and that students are disorderly on a daily basis. He indicated that school safety agents handle

that “sort of stuff.” He agreed that police officers come in when the situation escalates to committing a crime.

On questioning by the Court, he agreed that two School Safety agents came to get him.

FINDINGS AND ANALYSIS

It is undisputed that on October 5, 2007, the Respondent was assigned to Newtown High School. During his meal break, there was some kind of disturbance in the Assistant Principal’s office just down the hall from the lunchroom where the Respondent was taking a meal break. A call went out over the radio indicating that there was a disturbance and the Respondent indicated that he would respond. Subsequently, SSA Phillips came into the lunchroom and asked the Respondent to respond to the situation. After that, SSA Bradshaw came into the lunchroom and asked the Respondent to respond to the situation. However the Respondent, according to his testimony, first put away his lunch before responding and has admitted to delaying his response as charged in Specification No. 1.

Sergeant Williams testified that he heard the radio call of a disturbance and arrived at the scene before the Respondent. He did not recall the details of the incident but did recall that after it was over he went down the hall with the Respondent and asked him about the delay. At that point, the Respondent, according to Sergeant Williams, said something about his having been on meal, threw his hands up in the air and walked away. Indeed, Sergeant Williams said that he was left standing there.

The Respondent admits that he said something about having been on meal but denies throwing his hands up in the air or walking away.

Specification No. 2 deals with this alleged throwing of his hands in the air and walking away. The factual issue to be determined therefore, is a straightforward one on one. Either the Respondent's version of what occurred in this private conversation is correct or Sergeant Williams' version is correct.

Counsel for the Respondent argues that the Respondent demonstrated a better memory of the details of what occurred that day because he testified about the specifics of the incident between the assistant principal and the student, while Sergeant Williams could not recall them.

That is certainly a reasonable argument but memory is a peculiar thing. While the Respondent claims to remember everything about his conversation with the student, he could not remember the details of his discussion with Sergeant Williams which is at the heart of this case. Moreover, there are other reasons to accept Sergeant Williams' version. The first is that the Respondent is an interested witness while Sergeant Williams is not an interested witness. The interest of the Respondent certainly affects his credibility on this issue. Sergeant Williams was a neutral witness with nothing to gain or lose in the outcome of this case. Indeed, the Respondent used Sergeant Williams' opinion that the misconduct could be addressed through a command discipline, in his argument on penalty. Clearly Sergeant Williams' testimony on the subject of penalty helped the Respondent and counters any argument that Sergeant Williams may have some kind of animus toward the Respondent. In short, all of the indications, including his courtroom demeanor, are that Sergeant Williams is telling the truth.

This Court accepts Sergeant Williams's version of the events and therefore the Respondent is found Guilty of Specification No. 2.

PENALTY

The Respondent argues that the misconduct in Specification No. 1 is mitigated by the fact that it was called in as a "disturbance" and not as a 10-85. He indicated that a disturbance could be an argument without physical violence and therefore his failure to respond was less egregious.

The Court disagrees. A student loudly arguing with an assistant principal is a significant event in and of itself and has all of the potential to evolve into violence. The entire purpose of policing the schools is to prevent such disturbances. Moreover, the Respondent was physically close to the situation and was in an excellent position to provide a prompt response. Instead Sergeant Williams who was outside the building at the time of the radio run got to the scene before the Respondent who was only a few doors away. Additionally, there was time for two SSA's to find him and call for his response in person. Even if these two requests came moments apart as the Respondent contends, they indicate the urgency of the situation and they provide a measure of the delay which was clearly more than the 30 seconds claimed by the Respondent.

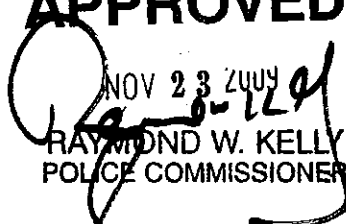
While the Court finds that each specification sets forth serious acts of misconduct it cannot agree with the penalty recommendation of the Department which calls for 30 suspension days, 30 vacation days and dismissal probation. The Court can find no prior Departmental case in which similar charges resulted in a period of suspension. Nor does the Court find anything in this case which would call for such a penalty.

The loss of thirty vacation days however does seem to be appropriate and in line with penalties for similar misconduct. Additionally, in light of the Respondent's prior disciplinary history, a period of dismissal probation is warranted.

The Court therefore recommends that the Respondent be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Section 14-115 (d) of the Administrative Code of the City of New York, during which time he is to remain on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings. The Court further recommends that the Respondent forfeit 30 vacation days.

Respectfully submitted,


Martin G. Karopkin
Deputy Commissioner – Trials

APPROVED

NOV 23 2009
RAYMOND W. KELLY
POLICE COMMISSIONER

From: Deputy Commissioner - Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER RONALD WILLIAMS
TAX REGISTRY NO. 900723
DISCIPLINARY CASE NO. 84379/08

The Respondent does have a prior disciplinary history. In 2002, the Respondent pleaded guilty to charges and specifications concerning a failure to conduct a proper investigation. He forfeited 30 vacation days and was placed on a one-year dismissal probation.


Martin G. Karopkin
Deputy Commissioner - Trials